

MT.2 Permit Application Checklist

The land approvals that decide whether a Montana parcel can carry a house at all, then the building permit if one exists, then the electrical permit that exists either way — in the order you have to work them.

Before you use this document

This is a process reference, not legal advice. Montana's building code does not apply to a residential building of fewer than five dwelling units unless the local legislative body has adopted it (50-60-102(1)(a), MCA) — but the electrical permit, the energy code, and all of water and wastewater law survive that exemption, on separate tracks with separate offices. Confirm every item with the office that will actually issue it.

IN MONTANA THE BUILDING DEPARTMENT IS NOT THE PROBLEM

In most states you start at the building counter. In much of Montana there is no building counter — and the approvals that can actually stop your project live in Title 76 (land and subdivisions), Title 85 (water), and your county's own health regulations. None of them is affected by the building-code exemption in MT.1, and two of them can take months. Work them in this order: **1. Sanitation status of the parcel. 2. Water. 3. Septic. 4. Access and address. 5. The permits.** Items 1 and 2 are the ones that end projects, and they are the ones people do last.

1. SANITATION APPROVAL — THE SENTENCE TO READ BEFORE YOU BUY LAND

This is the most important paragraph in the kit for anyone buying rural Montana land, and it has nothing to do with building permits. It is a flat statutory prohibition:

MCA 76-4-121 — Restrictions on subdivision activities

*"A person **may not** dispose of any lot within a subdivision, erect any facility for the supply of water or disposal of sewage or solid waste, **erect any building or shelter in a subdivision that requires facilities for the supply of water or disposal of sewage or solid waste, or occupy any permanent buildings** in a subdivision until: (1) a certificate of subdivision approval has been issued pursuant to 76-4-114 indicating that the reviewing authority has approved the subdivision application and that **the subdivision is not subject to a sanitary restriction**; (2) the certifying authority has provided certification pursuant to 76-4-127 that the subdivision will be provided with adequate municipal or county water and/or sewer district facilities and adequate storm water drainage; or (3) the subdivision is otherwise exempt from review under 76-4-125."*

Read what it forbids: **erecting the building**, and **occupying it**. Not permitting it — erecting it. So on a parcel that never cleared sanitation review, the fact that your county issues no building permit is beside the point: a different statute, in a different title, administered by a different agency, already says you may not put the house there. "No building permit required" and "you may build" are not the same sentence, and this is where the difference bites.

So a buildable parcel has one of three things behind it: a **certificate of subdivision approval** showing it is not subject to a sanitary restriction; a **76-4-127 certification** that municipal or county water and sewer will serve it; or a properly claimed **exemption** under 76-4-125. The exemption route has a formality worth knowing, because it is how you verify one from the public record: a person claiming an exemption must place an acknowledged certification on the plat or certificate of survey, and "*The certification **must quote in its entirety the wording of the applicable exemption***" (76-4-122(2)(c); the same requirement appears at 76-4-125(3)). A county clerk and recorder may not accept the filing otherwise (76-4-122(2)).

How to check a parcel — before you close, not after

Pull the **certificate of survey or plat** for the parcel at the county clerk and recorder and read what is printed on its face. You are looking for one of: a certificate of subdivision approval, a 76-4-127 certification, or an exemption certification **with the exemption quoted in full**. If you find none of those, or you find the words "**sanitary restriction**" without a later release, treat the parcel as not yet buildable and take the question to DEQ and the county before you sign anything. Ask the seller for the certificate of subdivision approval by name — a seller who has one produces it immediately, and a seller who cannot is telling you something.

The exemption that becomes the problem

Here is the mechanism, because it catches people who did everything right. "Subdivision" is defined broadly — a division creating one or more parcels of **less than 20 acres** for sale, rent, or lease (76-4-102(25)) — so an ordinary sub-20-acre rural lot is inside the Act. Many such lots were legally created and legally sold using a "**no facilities**" **exclusion**: the reviewing authority may exclude "*a parcel that has no facilities for water supply, wastewater disposal, storm drainage, or solid waste disposal, **if no facilities will be constructed on the parcel***" (ARM 17.36.605(2)(a)). DEQ's own explanation of what that means later is worth reading twice: such exclusions "*are listed on the front of the survey,*" and "*In either case, a **COSA must be issued for the lot(s) prior to developing facilities that require sewer or water.***"

The trap, stated plainly

The lot was exempted from sanitation review precisely because nobody was going to build on it. Building a house is the event the exemption assumed would never happen. So the exemption printed on your certificate of survey — the thing that made the parcel cheap and easy to sell — is the same thing that means you must now go through DEQ subdivision review and obtain a certificate of subdivision approval before you may put in a well or a septic system, and before you may erect or occupy the house (76-4-121).

Two more things people get wrong here. **The COSA is not the septic permit.** DEQ answers this directly: *"Do I need a permit to install a drainfield now that I have a COSA? — Yes, even though you have a COSA, a drainfield permit is still required by the local health department."* Two approvals, two offices, in that order. And **the county does not issue the COSA**: a certified local reviewing authority reviews and *"make[s] a recommendation for approval to the department,"* and then *"the department shall issue a certificate of subdivision approval"* (76-4-114(3)(c)). DEQ signs it, whoever reviewed it.

And the COSA constrains the site, not just the paperwork. It comes with an **approved lot layout**, and the well has to go where that layout puts it — you do not get to move it later because the driller preferred a different spot. Adding a second dwelling to the parcel means going back for a rewritten certificate. Ask the county for the COSA *and* the approved lot layout together; the layout is the document your site plan has to match.

There is no clean statewide lookup for this. DEQ says it *"tries to have digital copies"* but that *"local county environmental health departments are the best resource for obtaining these documents,"* and that if your lot was created after 1961 and is under 20 acres it will *"either have a COSA or ... have sanitary restrictions placed on it."* So do both: read the recorded document, then ask the county.

L1: Sanitation status of the parcel

	Item	Date	Notes / who confirmed
☐	Certificate of survey or plat pulled from the county clerk and recorder and read Document / book and page: _____		
☐	Which of the three applies: certificate of subdivision approval / 76-4-127 municipal or county service certification / 76-4-125 exemption quoted in full on the face of the document Which: _____ Cited exemption: _____		
☐	Checked specifically for the words "sanitary restriction" and, if present, for the document releasing it		

L1: Sanitation status of the parcel

	Item	Date	Notes / who confirmed
☐	If none of the three: DEQ subdivision program and the county contacted, and the review path and timeline confirmed in writing before any purchase or construction commitment Spoke with: _____ Date: _____		

76-4-121; 76-4-122(2), (2)(a), (2)(c); 76-4-125(1), (2), (3); 76-4-127, MCA. Read August 2026. Whether a particular parcel is inside or outside the definition of a reviewable subdivision is a legal question about that parcel's history — this document tells you which record to read and which office to ask, not what your parcel's answer is.

2. WATER — THE "EXEMPT" WELL IS NOT EXEMPT FROM PAPERWORK

Montana water law is prior-appropriation law, and a well is a water right, not a utility hookup. Small wells escape the full **permit** process — which is what "exempt well" means — but they do not escape **filing**, and the filing is reviewed and can be denied. Anyone who tells you a domestic well in Montana is paperwork-free has not read 85-2-306(3)(b).

Which exempt-well limit applies to your parcel

Where the parcel is	What the statute allows
Outside a stream depletion zone	No permit needed where the appropriation " is 35 gallons a minute or less, and does not exceed 10 acre-feet a year " — "except that a combined appropriation from the same source by two or more wells or developed springs exceeding 10 acre-feet, regardless of the flow rate, requires a permit " (85-2-306(3)(a)(iii)).
Inside a stream depletion zone	Much tighter: " is 20 gallons a minute or less, and does not exceed 2 acre-feet a year, " with the same combined-appropriation limit (85-2-306(3)(a)(iv)). In practice this is a narrow case — as of this printing only one stream depletion zone has been designated in Montana, on Rye Creek in Ravalli County. Confirm with DNRC rather than assuming either way, since designations can be added.
Inside a controlled ground water area	The exemption does not apply at all. Ground water may be appropriated " only ... according to a permit received pursuant to 85-2-508 " or according to a rule adopted under 85-2-506 (85-2-306(2)). This is the answer that can make a parcel unbuildable — ask DNRC by legal description.

Two filings, in this order — and the second one sets your priority date

Before you drill — and this is new. *"Before appropriating groundwater ... a person shall file with the department ... a correct and complete **notice of intent to appropriate groundwater**" (85-2-306(3)(b)(i)). This pre-drilling filing was created by **House Bill 681 of the 2025 session and took effect January 1, 2026**; DNRC implements it on **Form 602I**, which carries a **\$400 filing fee**. The department notifies you of defects within 10 business days; an uncorrected notice terminates after 60 days; and within 10 business days of a correct and complete notice the department *"shall review the notice for compliance ... and shall **authorize or deny** the notice."* Authorization is good for **5 years**, extendable once.*

The sting, if you skipped it. DNRC states that it can **no longer process a Notice of Completion without an authorized Notice of Intent on file**. So a well drilled without the front-end filing cannot be perfected at the back end — you do not get the certificate of water right, and the priority date you were counting on never attaches. If you were told at any point that a Montana domestic well is simply 'drill, then file within 60 days,' that advice is from before 2026.

After you drill. *"Within **60 days** of completion of the well ... and appropriation of the ground water for beneficial use, the appropriator shall file a **notice of completion**" (85-2-306(3)(c)(i)), and it must establish that the work was done *"in substantial accordance with the notice of intent ... authorized by the department."* Miss the cure period and *"the department authorization expires and a new notice of intent ... is required."**

Why the deadline matters more than it looks. *"A certificate of water right may not be issued until a correct and complete notice has been filed," and **"The date of filing of the notice of completion is the date of priority of the right"** (85-2-306(3)(d)). In a first-in-time-first-in-right state, sitting on that form is not an administrative slip — it is your seniority against every neighbor who files before you.*

"Combined appropriation" — what it means now

The phrase in the statute does a great deal of work, and its meaning moved recently. The definition in force is **ARM 36.12.101(14)**, current version effective **October 1, 2025**: *"an appropriation of water from the **same source aquifer** by two or more groundwater developments, the purpose of which, in the department's judgment, **could have been accomplished by a single appropriation**. Groundwater developments **need not be physically connected** nor have a common distribution system ... They can be developed gradually or in increments."* Note what that is not: **not a distance test**, and **not something you escape by phasing**. (The subsection was renumbered in the 2025 amendment; older sources cite 36.12.101(12).)

Why this changed — and what it means for one house on one lot

On **February 14, 2024**, Montana's First Judicial District Court decided *Upper Missouri Waterkeeper v. DNRC*, holding, in DEQ's summary, that DNRC "*incorrectly applied the law when it determined that a developer was entitled to appropriate up to 10 acre-feet of water for each phase of a four-phased subdivision*" and that DNRC "*is required to treat all phases of a multi-phased development as part of the same combined appropriation.*" DNRC rescinded its combined appropriation guidance and **stopped issuing predetermination letters.**

The practical read. One house, one well, one lot, outside a controlled ground water area and outside a stream depletion zone, at 35 gpm or less and 10 acre-feet or less: the exception applies on its face and you are almost certainly fine. **The risk is not your well — it is your neighbors'.** If your lot sits in a subdivision whose other lots draw from the same source aquifer, DNRC now counts all of them together against a single 10 acre-foot ceiling for the whole development. Ask DNRC, by legal description, what has already been claimed there before you buy.

L2: Water supply

	Item	Date	Notes / who confirmed
☐	Water source determined: exempt well / permitted well / municipal or district service / cistern with hauled water Source: _____		
☐	DNRC asked, by legal description, whether the parcel is inside a controlled ground water area or a stream depletion zone — the answer changes the limits and can remove the exemption entirely Answer: _____ Date: _____		
☐	Notice of intent to appropriate groundwater filed AND authorized before any drilling (85-2-306(3)(b)) Filed: _____ Authorized: _____		
☐	Checked whether other wells draw from the same source on the same development — a combined appropriation over the limit needs a permit regardless of flow rate		
☐	Notice of completion filed within 60 days of putting water to beneficial use — this date is your priority date (85-2-306(3)(c)(i), (3)(d)) Completed: _____ Notice filed: _____		

L2: Water supply

	Item	Date	Notes / who confirmed
☐	If municipal or district service instead: written will-serve and the connection fee in writing Provider: _____		
☐	If you intend to drill the well YOURSELF: exemption permit obtained from the Board of Water Well Contractors BEFORE any drilling — see the note below		

Drilling your own well — one permit, obtained first

Montana licenses water well contractors, and the homeowner carve-out is not automatic. Under **37-43-302(2)** you may construct a well on your own land — used as your residence, farm, or ranch, with the work **personally performed** — only if you hold an **exemption permit from the Board of Water Well Contractors**, and the Board's application carries a **\$100 fee**. The order matters: the permit is something you obtain **before** the drilling, not a form you file afterwards. And it stacks on the water-right filings above rather than replacing them — the exemption permit lets you do the drilling; the Form 602I notice of intent lets you appropriate the water.

85-2-306(1), (2), (3)(a)(iii), (3)(a)(iv), (3)(b), (3)(c), (3)(d), MCA, as published in the Montana Code Annotated at mca.legmt.gov, read August 2026. This section has been amended many times; check its History line for changes since this printing. Note also 85-2-306(1): you generally need a possessory interest in the property where the water will be used and exclusive rights in the well works, and a person without a possessory interest must give the landowner at least 30 days' written notice.

3. SEPTIC — A COUNTY PERMIT UNDER A STATE FRAME

Sanitation approval on the parcel (step 1) and the permit to install an actual system are two different things, and people conflate them. The installation permit is your **county's**, issued by the local health department or sanitarian under the county's own regulations. The statute assumes that office exists and gives it real authority — a filing under the sanitation part requires "approval of the local health officer having jurisdiction" (76-4-122(2)(a)), and a local health officer may require that a remainder parcel "include acreage or features sufficient to accommodate a **replacement drainfield**" (76-4-125(2)) — a reminder that Montana expects you to have room for the system you will need in twenty years, not just the one you install now.

The county's rules must be "no less stringent" than the state's (ARM 17.36.911(2); MCA 50-2-116(1)(j)), so a handful of numbers are the same everywhere and are worth designing around from the first site sketch — because they set how much usable land you actually have.

State minimums your county cannot go below

What	The rule
Well to drainfield	100 feet. ARM 17.36.323, Table 2 — from a drinking water well to a drainfield or soil absorption system, and the same 100 feet from a mixing zone to a drinking water well. 50 feet from the well to sealed components. A sewage lagoon is 1,000 feet . A smaller well isolation zone is possible only if the department approves one.
Property boundaries	10 feet , though an easement may satisfy it (ARM 17.36.323, Table 2). Surface water and springs to a drainfield: 100 feet .
Depth to a limiting layer	"For subsurface systems, a minimum separation of at least four feet of natural soil must exist between the infiltrative surface ... and a limiting layer" (ARM 17.36.320(4)) — six feet on slopes over 15 percent. This is the number that quietly decides whether a lot works.
The site work	The reviewing authority may require percolation tests per DEQ Circular DEQ-4 within each proposed system boundary; the applicant provides soil descriptions within 25 feet of each proposed drainfield boundary, and "At least one test hole must be dug for each individual drainfield" (ARM 17.36.325). Groundwater monitoring is required if water may come within seven feet of the surface at any time of year.
The well isolation zone must fit on your land	A "well isolation zone" is the area within a 100-foot radius of the well (76-4-102(27)), and for parcels created after October 1, 2021 both it and the drainfield mixing zone must lie inside the subdivision boundary or be secured by easement (76-4-104(7)(i)). On a small lot this, not the house, is the binding constraint.

Beyond those, the detail is county-level, so this kit gives you the questions rather than an answer that would be wrong in most counties. Ask your county environmental health office, in one call: what the site evaluation requires and who may perform it; whether soil pits or percolation testing are required and when in the year they can be done; the setbacks from the well, the property lines, surface water, and any cut bank; the minimum depth to groundwater or bedrock; whether a homeowner may install their own system or a licensed installer is required; and which inspection must happen **before the system is covered**. Get the answers in writing and file them here.

L3: Wastewater

	Item	Date	Notes
☐	County environmental health / sanitarian office identified and the current regulations obtained Office: _____		
☐	Site evaluation and soil work completed by whoever the county accepts — and scheduled for a season when the ground can actually be read By: _____ Date: _____		

L3: Wastewater

	Item	Date	Notes
☐	Asked whether a homeowner may install their own system here, or a licensed installer is required — this is a county answer, not a state one		
☐	Permit issued BEFORE any excavation for the system Permit #: _____ Date: _____		
☐	Room for a replacement drainfield identified and kept clear of driveway, building, and utility routes (76-4-125(2))		
☐	Inspection before cover scheduled, and the final approval obtained and filed with this kit		

4. ACCESS AND ADDRESS — SMALL APPROVALS THAT BLOCK BIG ONES

Two approvals that cost little and are expensive to discover late, because other applications ask for their output. An **assigned 911 address** is what a permit application, a power supplier, and the emergency-services database all key on — and on raw rural land it does not exist until somebody assigns it. A **road approach permit** comes from whoever owns the road: the county road department, the municipality, or the Montana Department of Transportation where a driveway meets a state highway. Ask early which one owns your frontage; on a rural parcel that is genuinely not obvious from a map.

Floodplain — a separate permit, and two feet of freeboard

If any part of your site is in a designated floodplain or floodway this is not optional and not folded into anything else: *"It is unlawful for a person to establish an artificial obstruction or nonconforming use within a designated flood plain or a designated floodway **without a permit** from the department or the responsible political subdivision"* (76-5-404) — and a house counts, because "artificial obstruction" reaches buildings and fill (76-5-103). It is expressly *"an added requirement"* on top of every other approval (76-5-108). The design number is the part to catch early: outside the floodway, a residential structure's lowest floor **including the basement** must be at least **two feet above** the 100-year flood elevation (76-5-402). Montana is a two-foot-freeboard state — stricter than the federal baseline, and it changes your foundation design, not just your paperwork. Local governments administer these permits; DNRC oversees the program and publishes the administrator list.

L4: Access, address, and the rest of the land

	Item	Date	Notes
☐	911 address assigned by the county addressing authority Address: _____		
☐	Road approach / driveway permit obtained from the road authority — county, city, or MDT for a state highway Authority: _____ Permit #: _____		
☐	Floodplain status checked with the county floodplain administrator and a development permit obtained if any part of the site is in a mapped hazard area — this applies whether or not a building permit does		
☐	Zoning and setbacks confirmed in writing — many Montana counties have no zoning at all, some have districts, and "no zoning" is still an answer worth having in writing		
☐	Easements, covenants, and any HOA architectural review identified — private restrictions bind you where no public code does — and the fire district asked directly about access width, turnaround, and water supply		

5. THE PERMITS — WHICH ONES EXIST FOR YOUR HOUSE

Now, and only now, the permits. Which of these you owe was settled in MT.1 and MT.4; this table is the summary you work from. The middle column is the ordinary rural case — a house of fewer than five dwelling units outside every certified program.

What you owe, by discipline

Discipline	Outside every certified program	Inside one
Building	None. The state building code does not apply and the state may not enforce it (50-60-102(1)(a), (2)).	Local building permit, plan review, and inspections.
Electrical	Required — from the state. The department: <i>"State electrical permits are required on all electrical work performed in Montana, except in cities, counties and towns certified."</i> A Homeowner Electrical Permit form is published for owners doing their own work.	Local, but only if the jurisdiction's listing shows E — most show building only (MT.4).

What you owe, by discipline

Discipline	Outside every certified program	Inside one
Plumbing	None if you personally do the work as owner of the residential property (50-60-506(4)). If someone else does it, a state plumbing permit.	Local where the local code covers plumbing with inspection procedures, which removes the state permit (50-60-506(3)).
Mechanical (includes gas piping)	None. The rules say it outright: " <i>The department shall not enforce the IMC in buildings exempted from state building codes by 50-60-102, MCA</i> " (ARM 24.301.172(2)), and the fuel gas rule carries the same sentence (ARM 24.301.173(2)). Your house is such a building.	Local where the listing shows M.
Energy	You certify it, in writing, at the end (50-60-102(5)(b)(ii); 50-60-802(1)). Not a permit — a duty.	Verified through the local program.

Codes you are building to, even where nobody checks

Montana adopted its current family of codes **effective June 11, 2022**: the **2021 IRC**, 2021 IBC, **2021 Uniform Plumbing Code** (Montana uses the UPC, not the IPC — the fixture table is at ARM 24.301.351, and the department publishes a legible copy because the rule itself is hard to read), 2021 IMC, 2021 IFGC, **2021 IECC**, and the **2020 National Electrical Code**. All of them are amended by ARM Title 24, chapter 301, and several of those adopting rules were themselves amended effective September 2024 — so read the rule, not just the model code.

Four Montana amendments that change what you build. (1) Snow load: the IRC's snow provisions are rewritten to ASCE 7-22 with a **30 psf minimum** outside certified jurisdictions — a floor, not a design value; see the next page. **(2) Frost depth:** outside certified jurisdictions, **three feet** for a single-story frame house and **four feet** for multistory or masonry (ARM 24.301.142(9)). **(3) Air leakage:** Montana replaced IECC R402.4.1.2 with a blower-door limit of **four air changes per hour** at 50 pascals in Climate Zone 6 — *not* the national three — and requires "*a written report of the results of the test ... signed by the party conducting the test*" (ARM 24.301.161(1)(k)). **(4) Sprinklers:** IRC R313 is deleted in its entirety, matching the statutory bar at 50-60-203(5)(a).

And Montana amends the NEC downward in two places, which matters if you are wiring from national material: ARM 24.301.401 adopts the **2020** edition, then amends 210.8(A) and (B) to **remove 250-volt receptacles** from the GFCI requirement and amends 210.12 to **delete every reference to kitchens** from AFCI. In both spots Montana is *less* stringent than the model code. **Check the date before relying on any of this:** a code-adoption rulemaking was under way as this edition went to print, with a hearing noticed for August 2026, so the 2020 NEC and the 2021 I-codes may be replaced within months. Confirm at bsd.dli.mt.gov before you design.

P1: The permits and the certification

	Item	Date	Notes
☐	Confirmed from the certified-jurisdiction list whether a local program covers this parcel, and for which disciplines (MT.4) Program: _____ Disciplines: _____		
☐	Electrical permit obtained BEFORE the work — Homeowner Electrical Permit if you are doing it yourself. Fee for a single-family dwelling is set by rule: \$200 up to a 200-amp service (ARM 24.301.461) Permit #: _____ Date: _____		
☐	Confirmed that YOU will perform all work under the permit — no person other than the permittee may do any of it (ARM 24.301.431(8))		
☐	Grid-tied solar, wind, or standby generator work assigned to a licensed electrician — the homeowner exemption does not cover it (37-68-103(3)(b)); note the department publishes a separate alternative-energy permit form		
☐	Plumbing decided: personally performed under 50-60-506(4), or permitted		
☐	Mechanical and gas piping status confirmed with the department for THIS building Answer: _____		
☐	Adopted energy code edition and effective date written down, and the written certification prepared for signature at completion (50-60-802(1)) Edition: _____ Signed: _____		

6. THE TWO THINGS NOBODY WILL CHECK FOR YOU

Where no plan reviewer reads your drawings, two decisions have no backstop at all, and both are structural.

Snow load, and the wildland-urban interface

Ground snow load — and check where your number came from. Montana replaced the IRC's snow provisions outright: outside certified jurisdictions, ground snow loads are taken from **ASCE/SEI 7-22** through the **ASCE 7 Hazard Tool** (asce7hazardtool.online), with a **minimum design roof snow load of 30 psf** after allowed reductions unless a Montana-licensed design professional justifies less (ARM 24.301.154(5), current version effective September 2024).

This tripped us up, so it will trip you up. The department's own snow-load web page still points at a Montana State University study from 2004. **The rule governs, not the web page** — pull your site's value from the ASCE 7 Hazard Tool, and if an older guide, a truss supplier, or a neighbor quotes you a figure, ask which source it came from before you build a roof on it. Values change sharply over short horizontal distances, so a number for the valley floor is not a number for a bench a thousand feet higher. Treat the 30 psf as a **floor, not a target. Write your site's figure and its source into MT.3**, and design for drift and sliding loads where roof planes change, behind parapets, and against taller walls — that is where most snow failures actually happen.

Wildfire. Montana *has* adopted the **2021 Wildland Urban Interface Code** among its state codes, effective June 11, 2022 — but on the department's certified list only **four jurisdictions** (Bozeman, Columbia Falls, Great Falls, and Whitefish) are certified to enforce it, and the residential exemption keeps it away from most houses. So if you are building in the trees anywhere else, ignition-resistant construction and defensible space are **your** decision and nobody else's: a Class A roof kept clear of needles, ember-resistant vents and enclosed eaves, ignition-resistant siding and decking, and managed vegetation around the structure. Your insurer will care about this long before any inspector does.

Sources — every Montana claim in this document (verified August 2026)

What this document states	Authority
You may not erect a building requiring water or sewage facilities, or occupy a permanent building, until sanitation approval, a municipal service certification, or an exemption applies	76-4-121, MCA
An exemption certification must quote the applicable exemption in its entirety, and the clerk and recorder may not accept a filing otherwise	76-4-122(2); 76-4-125(3), MCA
Local health officer approval, and replacement-drainfield capacity	76-4-122(2)(a); 76-4-125(2), MCA
Exempt well outside a stream depletion zone: 35 gpm and 10 acre-feet; combined appropriation over the limit needs a permit	85-2-306(3)(a)(iii), MCA
Inside a stream depletion zone: 20 gpm and 2 acre-feet	85-2-306(3)(a)(iv), MCA
Inside a controlled ground water area, only by permit	85-2-306(2), MCA

Sources — every Montana claim in this document (verified August 2026)

What this document states	Authority
Notice of intent filed and authorized before appropriating; 5 years to complete	85-2-306(3)(b), MCA
Notice of completion within 60 days; the filing date is the priority date of the right	85-2-306(3)(c)(i), (3)(d), MCA
The state building code does not apply to residential buildings of fewer than five dwelling units; the energy provisions apply anyway	50-60-102(1)(a), (2), (5), MCA
State electrical permits required on all electrical work except in certified jurisdictions; mechanical permits tied to buildings to which state building permits apply	DLI Building Codes Program permit pages, bsd.dli.mt.gov
2021 IRC, 2021 UPC, 2021 IECC, 2020 NEC and the rest, effective June 11, 2022, all amended by ARM Title 24, chapter 301	DLI Current Codes, bsd.dli.mt.gov
A sub-20-acre parcel is a "subdivision"; a "no facilities" exclusion assumes nothing will be built, so a COSA is needed before developing water or sewer	76-4-102(25), MCA; ARM 17.36.605(2)(a); DEQ
The COSA is issued by DEQ on a local reviewing authority's recommendation, and is separate from the county septic permit	76-4-114(3)(c), MCA; DEQ
Well to drainfield 100 feet; four feet of natural soil above a limiting layer; well isolation zone must lie within the boundary	ARM 17.36.323 Table 2; ARM 17.36.320(4); 76-4-104(7)(i), MCA
Pre-drilling Notice of Intent (Form 602I, \$400) created by HB 681, effective January 1, 2026; no Notice of Completion may be processed without an authorized one	85-2-306(3)(b), MCA; DNRC
"Combined appropriation" means the same source aquifer, not a distance test, and phases count together after the February 2024 decision	ARM 36.12.101(14), eff. 10/1/2025; DEQ
A homeowner drilling their own well needs a Board of Water Well Contractors exemption permit (\$100) first	37-43-302(2), MCA
Floodplain permit required; lowest floor including basement two feet above the 100-year flood elevation	76-5-404; 76-5-402; 76-5-108, MCA
No state mechanical or fuel gas enforcement in buildings exempted by 50-60-102	ARM 24.301.172(2); ARM 24.301.173(2)
Snow load to ASCE 7-22 via the ASCE 7 Hazard Tool, 30 psf minimum; frost depth 3 ft frame / 4 ft multistory	ARM 24.301.154(5); ARM 24.301.142(9)
Blower door 4 ACH50 in Climate Zone 6 with a signed report; Montana amends the 2020 NEC downward at 210.8 and 210.12	ARM 24.301.161(1)(k); ARM 24.301.401

Read any **MCA** section cited above — Montana Code Annotated — at mca.legmt.gov, the Legislature's own server, which publishes each section with a History line naming every session law that amended it. Read any **ARM** rule — Administrative Rules of Montana; the building, electrical, plumbing, and mechanical code

adoptions live in **Title 24, chapter 301** — at **rules.mt.gov**, where the rule text is official and carries its effective date. Search that site by rule number rather than following a saved link: it is a search application, deep links collapse back to the search page, and a bad address returns an apparently working but empty page rather than an error. Two habits will keep you out of trouble in Montana. **First, always check whether the answer is in the MCA or the ARM**, and go read that one — Montana keeps an unusual share of what governs your house in the rules rather than the code, including real conditions on the homeowner exemptions that appear in no statute at all. **Second, watch which chapter you are in** — Montana splits one house across Title 50, chapter 60 (the building, plumbing, and electrical permits) and Title 37, chapters 68 and 69 (the electrician and plumber licenses), and an exemption written in one of them cannot waive a duty written in the other. All statute and rule text in this kit verified August 2026.